

SAR's requests can be made for the personal data of the data subject. They are not entitled to the data of any other person or data that could lead to the identification of any other person. Therefore when redacting all data that could directly or indirectly together with other information, lead to the identification of any other person should be removed. The data of local authority employees is not included and does therefore not need to be redacted.

1. **The scope** of the SAR has been defined by the father in his letter of the 18 September 2020 where he states his request is as follows

“ Please can I have any information regarding any allegations regarding Alfie and Charlie Brookes-Baker in relation to social services, school nurse for anxiety caused by myself or any negative reports or accusations made that are on file for the purposes of upcoming court hearings/proceedings”

2. **The SAR** is therefore limited to his personal data in relation to that scope. The comments about the neighbour involvement are out of this scope as are comments about the other child and parent that mother has fallen out with. There are other matters within the document that also appear to be out of this scope but a careful combing through data will be necessary by the school if redacted copies of data be provided to the father.

3. **Competence.** As a parent with parental responsibility the father may exercise the data rights of the children Alfie and Charlie, if they are not competent to do so themselves. The school must therefore consider whether Alfie and Charlie are competent to take charge of their data having regard to the nature of the data requested and the

current ages and understanding of the children which should of course be considered individually.

If the school consider the children to be competent then the children should be consulted about what they want to happen to their data. If the school consider they are not then the father as a parent with PR can exercise the child's data rights if the school are satisfied that he has PR and the school must ensure that they are satisfied of this and how they are satisfied of this.

4. Personal data and Identification of third parties The data I have seen has been redacted but not sufficiently as I can identify the mother as the person who is making observations and giving opinions upon the father.

Although opinions on the father are his personal data the identity of the mother or any other data subject such as the next door neighbour or another parent or child must not be disclosed. It occurs to me that unless the school greatly redact the data further then the identities of these individuals can be identified by the father if put together with any other data that he may have or may obtain. This is often referred to as enmeshed data. If after appropriate redaction the school still cannot ensure that the data or identity of a third party ie mother is not identified directly or indirectly then you must consider and balance the respective interests of the data subject (father) and the other individuals (mother)

From what I have seen thus far I think that the father, by virtue of the nature of the comments; his personal involvement this matter including data he already has in his possession, as a result, will be able to identify the mother indirectly after redaction. But the school must make its own determination as a data controller who has far more knowledge of this matter than I.

5. Balancing Test The ICO Guidance on what to consider is as follows-

The type of information (here we have safeguarding and other data)

Any duty of confidentiality. Consider here any duty owed to the children and mother. What will the consequences be if there is a loss of confidence in the school by the mother or children feeling that their concerns will not be confidential and will this lead to them feeling they cannot discuss issues or concerns with the school with the school ?)

Any steps taken to get consent. I note that the mother has not been asked if she consents to the disclosure of redacted data. So this needs to be done after the school have redacted the data so you are aware of whether it does or does not directly or indirectly identify her. This is so you can be transparent with her about this before she is asked to give consent. This would also apply to consent in relation to any competent children or other individuals which should not be the case here if you completely remove any of the comments of about the neighbour and the other parent and child.

Any express refusal of consent. This has yet to be ascertained in respect of the mother or a competent child if you feel that you have a competent child in either or both of the children.

Is it appropriate to do so ? I suggest the school consider all the circumstances of the matter when balancing the data rights of the data subject and third party. A thorough appraisal of all the circumstances is required.

Do the school have any general concerns? If so what are they ? Are there any particular circumstances to take account of ? If so what are they ? Do the school have any safeguarding concerns? If so what are they ? I note that there is an order of the court obtained by the mother in what appears to be injunctive proceedings but I have not

seen any order and if the school have seen it does it give cause for concern? Is it a current order or not ? Do you need further information? If so who from? Do you need to take a view with social services upon the matter because of safeguarding concerns ? If you do, then this will need to be actioned promptly as in accordance with your safeguarding procedure.

6. Transparency in actions taken decisions made and reasons.

The school must make a clear transparent note/record of actions taken and decisions made with reasons in case they are questioned at a later date upon the matter as can happen for many reasons including complaints by data subjects to the ICO as this is one of the rights of a data subject.

7. Grounds upon which the request of the father could be refused.

a. If the mother or any competent child refuses consent and the school decide that after balancing the data interests of the data subject and other third parties that the data requested discloses the data of other individuals which even with redaction would lead to their identification either directly or indirectly in conjunction with other data, then this is a valid reason upon which to refuse the request of the father.

b. If the school decide that disclosure of any data to the father would be likely to cause serious harm to the physical or mental health of another individual and therefore an exemption applies in respect of its disclosure and this is a valid reason for refusing the request of the father.

c. If even after significant redaction the data is still in the view of the school enmeshed then as the father has stated that the reason for his

request is for court proceedings the school after completing the blank of interests test could also refuse the request of the father on the basis that the stated purpose of the request given is the upcoming court hearings/proceedings. Consequently as it has therefore been made clear to the school that the sole or dominant purpose behind the SAR request is to obtain information for the purposes of litigation the appropriate forum in which to request this data is within the court proceedings by application to the judge hearing the matter who will decide whether or not these matters are relevant and how they are to be dealt with.

Under the case law *DB v GMC* [2016] EWHC 2331 (QB), important clarification is provided on how organisations should respond to SARs in the context of actual or anticipated litigation.

On the particular facts of this case, the data related to the data subject and a third party which was enmeshed and was required solely for the purpose of court proceedings. The Court was of the view that the most appropriate forum to request the data was within the court proceedings.

The court was clear that each case must turn on its own facts and the controller must perform the balance of interest test.

The court detailed three general principles that provide guidance;

1. It is essential to keep in mind that the balancing of interests exercise by the controller involves a genuine balance between the respective privacy rights of data subjects when data is enmeshed
2. If an affected individual does not consent to the disclosure of his personal data, then there is a rebuttable presumption against disclosure of his personal data, and any express refusal of consent is an important factor to be taken into account.
3. If it appears that the sole or dominant purpose behind the SAR is to obtain information for the purposes of litigation, that is a weighty factor against disclosing the personal data, on the basis that the more appropriate forum is the Court procedure under Civil Procedure Rule 31.

Please feel free to give me a call to discuss any of this as soon as you are able. I am available this afternoon or tomorrow morning until 1pm when I will be leaving the office at or you can drop me a line with your availability and we can arrange a time to discuss this next week.